

IN THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

JUSTICE MUHAMMAD HASHIM KHAN KAKAR
JUSTICE SALAHUDDIN PANHWAR
JUSTICE ISHTIAQ IBRAHIM

Criminal Petitions No.463 and 591 of 2019

(Against the judgment dated 18.03.2019, passed by the Islamabad High Court, Islamabad, in Criminal Appeal No.170 of 2017, Jail Appeal No.164 of 2017 and Murder Reference No.13 of 2017)

Shahbaz Butt (in Criminal Petition No.463 of 2019)

Khurshid Akhtar (in Criminal Petition No.591 of 2019)

...Petitioner (s)

Versus

The State & another (in Criminal Petition No.463 of 2019)
Shahbaz Butt (in Criminal Petition No.591 of 2019)

...Respondent(s)

For the Petitioner(s):

Mr. Qaisar Imam, ASC
(in Criminal Petition No.463 of 2019)

Mr. Zulfiqar Khalid Maluka, ASC
(in Criminal Petition No.591 of 2019)

For the State:

Mr. Abdul Khaliq Thind, DPG, ICT along
with Ehsan ul Haq S.I.
(in both cases)

Date of hearing:

05.01.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- On 17.08.2013, Muhammad Anar S.I. (PW-22), was on his duty at Police Station Nilore, Islamabad, when at about 5:00 or 5:15 p.m. he received information on telephone through his senior officer that a human dead body has been burning inside a blue-coloured drum in front of *Butt Farm, Simbli Dam Road*. Upon receipt of the said information, he along with other police officials rushed to the spot, where he found a dead body having injuries on various parts, caused with sharp weapon and some organs of the dead body burnt. He prepared inquest report (Exh.PX) of the dead body and on its search, recovered some visiting cards. After contacting the phone numbers mentioned on the visiting cards, Muhammad Anar S.I. came to know that one Nadeem Akhtar, a shopkeeper of *Bara Market, Rawalpindi*, had been missing

since 16.08.2013. He shifted the dead body from the spot to Polyclinic Hospital, Islamabad, where Khurshid Akhtar complainant (PW-8), along with his nephew Farrukh Akhtar and other relatives, identified the dead body as that of his brother, Nadeem Akhtar deceased. The complainant submitted a written complaint (Exh.PK) to the police wherein he alleged that on 16.08.2013 at about 3:00 p.m., his deceased brother Nadeem Akhtar, who was running a watch business under the name and style of *Al-Noor Watch Company* in a shop situated in *Bara Market, Rawalpindi*, had left his shop on a motorcycle with Shahbaz alias Kani, the petitioner; that when the deceased did not return, he (complainant), running a cosmetic shop in the same market, submitted an application to police Station City Rawalpindi, regarding missing of his deceased brother. The complainant further stated that on 17.08.2013 he received information regarding the recovery of the dead body of his deceased brother from *Simbli Dam Road, Village Tumair*, and its subsequent shifting to Polyclinic by Muhammad Anar, S.I. (PW-22); that on receipt of the said information, he along with his nephew Farrukh Akhtar and other relatives, reached the said hospital where they identified the dead body as that of Nadeem Akhtar deceased. He charged the petitioner for committing murder of the deceased without disclosing any motive. On his report, FIR No.93 dated 17.08.2013 under sections 302, 397, 201 and 436 of the Pakistan Penal Code (**'PPC'**) was registered against the petitioner at Police Station Nilore Islamabad.

2. Upon arrest of the petitioner and completion of investigation, report under section 173 of the Code of Criminal Procedure, 1898 (**'the Code'**) was submitted against him before the Additional Sessions Judge-II (East), Islamabad (**'Trial Court'**). Upon conclusion of trial, the learned trial Court vide judgment dated 30.10.2017 convicted and sentenced the petitioner for various offences, as below:-

Under Section 302(b): Sentenced to death and to pay Rs.1,00,000/-, as compensation under section 544-A of the code to legal heirs of the deceased and in default thereof to further undergo six months simple imprisonment.

Under Section 392 PPC: To undergo rigorous imprisonment for ten years along with fine of Rs.50,000/- and in default thereof to further undergo 04 months simple imprisonment.

Under Section 201 PPC: To undergo rigorous imprisonment for seven years along with fine of Rs.20,000/- and in default thereof to further undergo two months simple imprisonment.

Benefit of Section 382-B of the Code was extended to the petitioner.

3. The Islamabad High Court, Islamabad (**'the High Court'**), while dismissing Criminal Appeal No. 170 of 2017 and Jail Appeal No. 164 of 2017, filed by the petitioner-convict, upheld his conviction and sentences, except that the death sentence was commuted to imprisonment for life. Consequently, Murder Reference No. 13 of 2017, submitted by the Trial Court for confirmation of the death sentence, was answered in the negative by the High Court vide its judgment dated 19.02.2019 (**'impugned judgment'**).

4. Through Criminal Petition No.463 of 2019, the petitioner-convict seeks leave to appeal against the impugned judgment of the High Court. Conversely, complainant Khurshid Akhtar, has filed Criminal Petition No.591 of 2019, seeking enhancement of sentence of the convict-respondent from life imprisonment to normal penalty of death as prescribed for the offence under section 302 PPC.

5. We have heard the arguments of learned counsel for the parties as well as the learned Deputy Prosecutor General, Islamabad, and perused the record, evidence and the judgments of the Courts below with their able assistance.

6. After a careful examination of the material on record, we have noted that direct ocular account of the occurrence is not available in the present case. The prosecution case is based upon circumstantial evidence, comprising the last-seen evidence, furnished by complainant Khurshid Akhtar (PW.8) and Fardul (PW.7), the confessional statement of the petitioner-convict, and various recoveries on the disclosure and pointation of the petitioner-convict.

7. Complainant Khurshid Akhtar (PW-8) was running a cosmetic shop adjacent to the shop of his deceased brother, in Bara Market, Rawalpindi; that on 16.08.2013 at around 3:00 p.m., the petitioner-convict visited shop of the deceased and took him on his motorcycle under the pretext of showing some watches to him, as the deceased was dealing in the business of watches; that he (complainant) waited for the return of the deceased for a considerable time, also searched for him, and attempted to contact him on his mobile phone, but his mobile phone was found switched off. He, therefore, proceeded to the City Police Station, Rawalpindi, and submitted an application regarding disappearance of his brother; that on the next day i.e. 17.08.2013, he received information about murder of his brother and recovery of his

dead body by the police and shifted to Polyclinic Hospital, Islamabad; that on the said information along with his nephew and other relatives, went to the said hospital, where he identified the deceased's body and lodged a report charging the petitioner-convict for murder of the deceased.

8. Another witness who has furnished last-seen evidence is Fardul (PW-7). He being not related to the complainant and the deceased, is an impartial witness. He deposed that he was running a business of selling purses in front of the deceased's shop; that on 16.08.2013, at about 3:00 p.m., the petitioner-convict Shahbaz Butt entered the deceased's shop, and took him on motorcycle; that at the time of leaving the shop, the deceased told him to also look after his shop.

9. Both the above witnesses were cross-examined; however, nothing beneficial to the defense or adverse to the prosecution could be extracted. They consistently maintained their stance that the petitioner-convict visited the deceased's shop on 16.08.2013 at 3.00 p.m. and took along with him the deceased on the motorcycle, after which the deceased did not return. According to them, on the following day, the deceased's dead body was recovered by the police in front of *Butt Farm, Simbli Dam Road*, from a blue-coloured drum and shifted to Polyclinic Islamabad. On scrutinizing the testimony of the above named PWs, we are firm in our view to hold that the learned courts below have rightly believed the evidence of last seen furnished by them.

10. During investigation and interrogation, on the disclosure and pointation of the petitioner-convict certain recoveries were effected, which have also been proved by the prosecution through independent evidence. Adnan Aslam (PW-9) deposed that on 17.08.2013, the petitioner-convict visited his shop (Shop No.33, Drum Market, near Saddiqia Masjid, Rawalpindi) and purchased a drum for Rs.1,700/-. He described the drum as being four feet in height and two feet in diameter and further confirmed that he recognized the petitioner as the person who purchased the said drum from him. Similarly, Shakeel Abbasi (PW-6) deposed that on 17.08.2013, the petitioner-convict hired his Suzuki to transport a drum, which as per the petitioner was containing utensils and electrical articles, from Pir Wadhai to Tumair; that at around 2:00 p.m., the petitioner brought the drum and other luggage in a Rickshaw, loaded it into his Suzuki and thereafter drove him towards *Simli Dam Road*, where the drum was unloaded in front of a house. He further

stated that the petitioner paid him Rs. 25,000/- as fare, which was subsequently taken into possession by the Investigating Officer from him. Nisar Butt (PW-10) deposed that on 17.08.2013, the petitioner-convict visited his tandoor shop on motorcycle near *Stabal Road, Moti Cinema, Rata Road, Rawalpindi*, and purchased two sacks. Muhammad Qadeer (PW-12) deposed that he was serving as a salesman at Shell Petrol Pump, *Chungi No.4, Bagh Sardarn, Rawalpindi*, and on 17.08.2019, the petitioner-convict visited the said Petrol Pump and purchased petrol. According to Aftab Ahmad (PW-14), the petitioner-convict visited his shop situated in *Village Mawa, Simli Dam Road, Tumair*, and purchased matchboxes, Capstan cigarettes, and toffees from his shop. All of the above-mentioned witnesses are impartial and though cross-examined by the defence, but nothing could be elicited from them to create any dent in their testimony.

11. Apart from above, certain belongings of the deceased were also recovered pursuant to the disclosure and pointation of the petitioner-convict. Muhammad Anar S.I., the Investigating Officer, recovered a gold ring (Exh.P.2) of the deceased from Khalid Durrani *Jeweler, Sarafaza Bazaar* on the pointation of the petitioner vide recovery memo Exh.PH, which had been sold to him by the petitioner-convict. The said gold ring was identified by complainant Khurshid Akhtar (PW-8), brother and Farrukh, nephew of the deceased. Similarly, on 29.09.2013, pursuant to the disclosure and pointation of the petitioner, the Investigating Officer also recovered a gold chain of (Exh.P.3) from his residence i.e. House No.Z.508, Gali No.8, *Mohallah Zahooraabad, IslamPura, Rawalpindi*, vide recovery memo Exh.PJ, which was also identified by the complainant. Khalid Durrani, owner of Nishat Jeweler (PW-16), was examined as PW.16, whose testimony corroborates the Investigating Officer's account. He deposed that on 18.08.2013, the petitioner-convict visited his shop and sold the gold ring (Exh.P.2) for Rs. 23,000/-; that as the petitioner was a friend of his son, therefore, he did not demand a receipt of the same; that on 22.09.2013, the police visited his shop along with the petitioner-convict and he identified the petitioner to be the same who had sold the gold ring to him. He also furnished details of the weight of the gold ring as 1.34 grams.

12. All the witnesses to the aforesaid recoveries were also cross-examined by the defence; however, nothing could be elicited to

suggest that the recoveries were planted or otherwise fabricated against the petitioner-convict. In case titled, “Billmoria alias Muhammad Hussain vs the State” (PLD 1958 Supreme Court 313), this Court while maintaining the conviction of accused person on circumstantial evidence had taken into consideration such kinds of recoveries in aid of the prosecution’s case. Relevant part of the judgment is reproduced below:-

“Thus on the fact found by the Courts below, which in our opinion, on the evidence, they were fully entitled to do, it is established that shortly after the murder of Mukhtar Ahmed, which was committed with a weapon such as a sharp axe, and which was accompanied by robbery of the personal property in his immediate possession, the accused Billmoria was found in personal possession of Mukhtar Ahmad’s spectacles and his shoes, and that he was also in possession, in a place of hiding of which he had exact knowledge of a shirt, a pair of trousers, a woollen coat and shaving tackle belong to Mukhtar Ahmad . Billimoria’s possession is further proved by the fact that these were found tied in a shirt belonging to him. In the same place of hiding was found an axe belong to Billmoria which, or a similar weapon was the instrument with which the murder was committed.

Thus, practically everything which was robbed from the murdered man was recovered from Billmoria’s possession on the fourth day following the discovery of the crime. This is a very strong circumstance favouring the belief that he was the person who removed these things, following the murder and the natural inference is that he was directedly concerned in the murder.

13. The cumulative effect of the foregoing discussion is that the prosecution has successfully established the guilt of the petitioner-convict through a strong, coherent, and unbroken chain of circumstantial evidence, one end of which touches the dead body of the deceased and other the neck of the petitioner-convict. It is a well-settled principle of law that a conviction, even in cases carrying the death penalty, may safely be recorded on the basis of circumstantial evidence, provided such evidence excludes every reasonable hypothesis of the innocence of the accused. In the present case, each circumstance has been proved independently by the prosecution and is so interlinked with the others as to form a complete and unbroken chain, leading to no conclusion other than the guilt of the accused. There exists no rule of law or practice that precludes a court from convicting or sentencing an accused solely on the basis of circumstantial evidence, so long as no link in the chain is missing and all proved circumstances closely point towards the guilt of the accused. Reliance in this regard may aptly be placed on *Munawar Hussain v. Imran Waseem* (2013 SCMR 374).

14. Adverting to the confessional statement of the petitioner-convict is concerned, we are in agreement with the findings recorded by the High Court whereby its evidentiary value was discarded. The High Court has

correctly observed that the confessional statement of the petitioner was recorded on 30.09.2013 and that, subsequent thereto, the petitioner was not remanded to Jail; rather, he was kept at the police station on *rahdari* and was sent to jail on the following day, i.e. 01.10.2013. This fact has been acknowledged by the Investigating Officer of the case in his statement. In this view of the matter, the High Court has rightly held that the confessional statement of the petitioner-convict being recorded in blatant violation of the principles consistently laid down by this Court in *Azeem Khan v. Mujahid Khan* (2016 SCMR 274), *Muhammad Akram v. The State* (1995 SCMR 1359) and *Muhammad Ismail v. The State* (2017 SCMR 898).

15. The learned high Court having properly appreciated the evidence available on record in its true and correct perspective, has thus rightly arrived at a just and proper conclusion in holding the petitioner-convict guilty of the offence to which no exception can be taken. The reasons assigned by the High Court for commuting the death sentence of the petitioner-convict to imprisonment for life are founded upon a correct application of the settled principles of law enunciated by this Court and are fully in consonance with the established jurisprudence, warranting no interference.

16. Accordingly, Criminal Petitions No.463 and 591 of 2019, are dismissed and leave to appeal is refused.

Judge

Judge

Judge

Announced in open Court at Islamabad on_____

Judge

Approved for reporting.
M.Siraj Afridi PS

